

Shweta W/O Sudhindra Walvekar vs Sudhindra S/O Raghavendra Walvekar on 27 March, 2023

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CP No. 100220 of 2022

IN THE HIGH COURT OF KARNATAKA, DHARWAD
BENCH

DATED THIS THE 27TH DAY OF MARCH, 2023

BEFORE

THE HON'BLE MRS JUSTICE K.S.HEMALEKHA
CIVIL PETITION NO. 100220 OF 2022

BETWEEN:

SHWETA W/O SUDHINDRA WALVEKAR
AGE: 33 YEARS, OCC: HOUSEWIFE,
R/O: C/O: SRI SHANKAR RAO SARAF,
RESIDING AT WARD NO.2, KULKARNI PETE,
BEHIND SAI TEMPLE, ILKAL 587125,
DIST: BAGALKOTE.

...PETITIONER

(BY SRI. N B JODALLI AND MISS KAVITHA S JADHAV.,ADVOCATES)

AND:

SUDHINDRA S/O RAGHAVENDRA WALVEKAR

AGE: 37 YEARS, OCC: PVT. COM. IN SERVICE,

R/O: NO.11, 7TH MAIN, 4TH CROSS,

RAGHAVENDRA NAGAR, RAMAMURTHYNAGAR,

BENGALURU 560016.

...RESPONDENT

(BY SRI. K S RAGHURAM,
SRI H R KAMBIYAR AND
SMT. SASHIKALA PATRI .,ADVOCATES)

Digitally

signed by
ANNAPURNA
CHINNAPPA

ANNAPURNA DANDAGAL
CHINNAPPA

DANDAGAL Location:
HIGH COURT
OF
KARNATAKA
DHARWAD

CP FILED UNDER SECTION 24 OF CPC, PRAYING TO I) PASS APPROPRIATE ORDER OR DIRECTION FOR WITHDRAWAL AND TRANSFER OF PETITION MC NO. 5248/2022 ON THE FILE OF V ADDITIONAL PRINCIPAL JUDGE FAMILY COURT, BENGALURU TO THE SENIOR CIVIL JUDGE AND JMFC COURT HUNGUND IN THE INTEREST OF JUSTICE AND EQUITY.

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CP No. 100220 of 2022

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The Petitioner-wife is before this Court seeking to withdraw M.C.No.5248/2022 pending on the file of the V Additional Principal Judge, Family Court, Bengaluru and transfer to the Senior Civil Judge and JMFC, Hungund.

2. It is not in dispute that the petitioner is the legally wedded wife of respondent and marriage was solemnized on 05.06.2014. It is stated by the petitioner that due to un-cordial relation between the petitioner and the respondent, they are living separately. In their wedlock, they are blessed with twin children, namely, Kumari Varsha and Kumar Ved. As the respondent neglected the petitioner and her children, petitioner was constrained to file CrI.Misc.80/2022 on the file of the Additional Civil Judge and JMFC Court, Hungund. It is stated that pursuant to the criminal miscellaneous filed by the wife-petitioner herein the respondent has filed petition under Section 13(1)(ia)(ib) of Hindu Marriage Act 1955, seeking dissolution of marriage in MC No.5248/2022 before V Additional Principal Judge, Family Court, Bengaluru.

2. Heard the learned counsel for the petitioner and learned counsel for the respondent. Perused the material on record.

3. Petition filed by husband under Section 13(1)(ia)(ib) of Hindu Marriage Act 1955 in MC No.5248/2022, the address of the petitioner shown is Ilkal. It is the contention of the petitioner that the petitioner is staying in her parents house at Ilkal and petition filed for divorce at Bengaluru and distance is around 412 kms., which takes around 7 hours 30 minutes to travel. The petitioner is staying with her minor children who are aged about 6 years old and it is difficult for the petitioner to leave them alone at home and travel a distance of 412 kms. Petitioner is aged about 33 years and depending upon her parents and it is difficult in terms of physically as well and financially to travel all the way to Bengaluru to attend the court case at Bengaluru.

4. Section 24 of the CPC enables this Court to exercise power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Hon'ble Apex Court in catena of

judgment in line. The Apex Court in case of N.C.V. Aishwarya VS. A.S.Saravana Karthik Sha reported in AIR 2022 SC 4318 has held that at para No.9 which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

5. In the present case, the petitioner is residing in Ilkal at her parents house, it is inconvenient for the petitioner to travel alone all the way to Bengaluru which is around 412 kms., since the petitioner is aged about 33 years having two children and faced with financial difficulty to travel all the way from Ilkal to Bengaluru to attend matrimonial case at Bengaluru.

6. In light of the reasons stated supra, the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

ORDER

a) The Civil petition is allowed.

b) The M.C.No.5248/2022 pending on the file of the V Additional Principal Judge, Family Court, Bengaluru is withdrawn and transferred to the Senior Civil Judge and JMFC, Hungund.

Sd/-

JUDGE VMB